



**REGULATION N° 18/R/SM-ICT/RURA/2024 OF 09/08/2024
GOVERNING SIM CARD REGISTRATION IN RWANDA**

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REGULATION N°18/R/SM-ICT/RURA/2024 OF 09/08/2024 GOVERNING SIM CARD REGISTRATION IN RWANDA

The Regulatory Board;

Pursuant to Law n° 09/2013 of 01/03/2013 establishing Rwanda Utilities Regulatory Authority (RURA) and determining its mission, powers, organization and functioning, especially in Articles 2. 1° and 20. 1°;

Pursuant to Law n° 24/2016 of 18/06/2016 governing Information and Communication Technologies; specially in Article 210;

Considering the necessity of harmonizing SIM card registration processes to promote user accountability, to enhance security, protect consumer rights and ensure fair competition;

Having reviewed Regulation N°004/ICT/RURA/2018 on SIM card Registration;

Based on the recommendations made during the consultative meeting held on 22/05/2024 between RURA and different stakeholders in the telecommunication sector;

Upon due consideration and deliberation in its session of 09/08/2024;

HEREBY ISSUES THE FOLLOWING REGULATION:

CHAPTER ONE: GENERAL PROVISIONS

Article One: Purpose of this Regulation

The purpose of this regulation is to:

- (a) put in place mechanisms and processes for registration and deregistration of SIM Cards and SIM swaps in Rwanda;
- (b) Enhance security in sim cards usage;
- (c) Prevent fraudulent registration of SIM cards and scams targeting consumers;
- (d) Prevent misuse of SIM cards;
- (e) protect the personal information of consumers;
- (f) enhance efficient management of allocated resources (mobile numbers and SIM cards);
- (g) Promote proper use of SIM cards and to ensure that users are accountable for the use of their SIM cards, reducing the likelihood of misuse; and
- (h) promote fair competition among telecom service providers.

Article 2: Interpretation

In this Regulation:

- 1) **“Activation”** means the process by which a SIM-Card Enabled Telecommunications Service is enabled such that the Subscriber can access any SIM-Card Enabled Telecommunication Services;
- 2) **“back-end office”** means a security office responsible for validating SIM-Card registration in the absence of biometric data;
- 3) **“Agent”** means a person duly authorized by the licensee to perform SIM registration and SWAP process on behalf of the Licensee;
- 4) **“Biometric data”** includes a front facing photograph, fingerprints, and iris scan;
- 5) **“Corporate body”** includes organization or a group of persons that has a legal personality;
- 6) **“Deactivation”** means the process by which a SIM-Card Enabled Telecommunications Service is disabled such that the Subscriber cannot access any SIM-Card Enabled Telecommunications Services;
- 7) **“Minor”** refers to a person who has not yet reached the age required to obtain an ID;
- 8) **“Dormancy”** refers to a state where a SIM card is temporarily deactivated due to inactivity for a specified period;
- 9) **“Guardian”** refers to any person who has legal responsibility for the care and control of a minor and is authorized by law to make decisions on the minor's behalf.;
- 10) **“ID”** means National Identity card;
- 11) **“KYC”** means Know Your Customer;
- 12) **“Licensee”** refers an operator who holds a license to provide mobile telecommunication services;
- 13) **“NIDA”** refers National Identification Agency;
- 14) **“Regulatory Authority”** means Rwanda Utilities Regulatory Authority;
- 15) **“DGIE”** means Directorate General of Immigration and Emigration;

- 16) **“OTP”** means One Time Password;
- 17) **“PIN”** means Personal Identification Number, which is a secret code used to secure and authorize mobile money transactions;
- 18) **“Registration premise”** means a designated service area or shop within a building where SIM card registration and SIM swap services are offered;
- 19) **“SIM”** means Subscriber Identity Module;
- 20) **“SIM Card”** means a detachable, or an embedded Subscriber Identity Module smart card used in a device connected to a mobile network to access telecommunication services of an operator;
- 21) **“SIM Swap”** means the process of replacing an existing SIM card with a new one, transferring the existing number to the new SIM;
- 22) **“Functional Data”** includes relevant data which will be used to determine whether the Applicant is eligible for telecommunication services. This data will be retrieved by the Licensee from Verification service entities (NIDA, RRA and the DGIE) database for the purpose of its telecommunication operations with respect to the applicant identity verification;
- 23) **“Travel documents”** includes ID, passport or any valid travel documents recognized in the Republic of Rwanda;
- 24) **“SIM Transfer”** refers to the process of changing ownership details associated with SIM card from one user to another;
- 25) **“Subscriber”** means a natural person, Commercial Entity, Government Entity or organization that has acquired or subscribes to SIM-Card Enabled Telecommunications Services;
- 26) **“Barred number”** means a state where a SIM Card is restricted from accessing the Operator network;
- 27) **“Registration”** means the process of recording subscriber’s information into the Subscriber Database;
- 28) **“Illegal SIM registration”** refers to the act of registering a Subscriber Identity Module (SIM) card using fraudulent or falsified information that does not accurately represent the identity of the actual user or subscriber. This could involve using fake or forged identification documents, registering SIM cards in someone else's name without their consent, or other deceptive practices to obtain a SIM card under false pretenses;
- 29) **“Illegal SIM Swap”** means a fraudulent act of replacing or switching a SIM card without the subscriber's knowledge or consent.

Article 3: Scope of application

This Regulation shall apply to all licensed Mobile Network Operators and any other electronic communication service providers who provide their services using SIM cards, as well as their subscribers in the process of SIM Registration/Deregistration and SIM swap.

CHAPTER II: SIM CARD REGISTRATION PROCESS AND REQUIREMENTS

Article 4: Activation of SIM Card on the network

Any licensee operating in Rwanda must register all SIM card holders, using its network services, in accordance with the provisions of this Regulation.

Article 5: SIM Card Registration Premise

- (1) The SIM Card registration and SIM swap must be done in premises as defined below or any other physical space approved by RURA.
- (2) The SIM Card registration premises must comply with below minimum requirements:
 - (a) SIM Card Registration should be conducted in designated area or shop within a building, to mitigate risks of data exposure and ensure optimal sanitary conditions;
 - (b) Allocate a specific area for a licensee's staff or agent to conduct SIM registration and SIM swap;
 - (c) The designated customer area must have adequate level of lumens to warrant accent lighting for live photos;
 - (d) Ensure a secured, fixed physical location with a recognizable brand that has a consistent identity of SIM Card registration and SIM Swap services;
- (3) Any licensee operating in Rwanda must ensure that the SIM Card registration premises are available at least at sector levels across the country, to ensure the availability and quality of services delivered to the users.
- (4) In Kigali and other cities, the number of SIM Card registration premises must be sufficient to avoid congestion and ensure high-quality customer service delivery.

Article 6: Requirements for enhanced SIM Card registration integrity

The Licensee must ensure the enhancement of SIM Card registration integrity by fulfilling the following requirements:

- (a) **Database Optimization:** The database capacity must be optimized to effectively verify applicant's records with the respective authentication entity;
- (b) **Connectivity and Harmonization:** Ensure seamless connectivity to harmonize Licensee KYC Records with databases of NIDA, RRA, and DGIE to enhance the integrity of the SIM Registration Database;
- (c) **Vetting of registering agent or staff:** The Licensee must ensure that agents or staff involved in SIM registration have been vetted by the competent organs;
- (d) **Documentation and Logging:** The Licensee must document registering staff or agent and ensure that all activities conducted during registration are comprehensively logged;
- (e) **User Account Management:** Each registering staff or agent must have a unique user account that is directly linked to all issued SIM Cards.

Article 7: Registration of Rwandan citizens

- (1) The registration of national citizens is conducted using an automated identification validation mechanism, which includes biometric data verification, to harmonize the SIM Registration with NIDA details and ensure the integrity and consistency of the SIM Registration Records.
- (2) The procedure for registration of SIM Cards shall be as follows:
 - (a) The registration is subject to the presentation of the Identity Card, the physical presence of the applicant and verification of personal information of the individual subscriber wishing to use the SIM Card;
 - (b) The registering agent or staff shall conduct electronic biometric verification of an individual against NIDA records for biometric SIM registration and verify the returned data versus the physical appearance of the applicant;
 - (c) The Licensee shall compare a live fingerprint or facial image of the applicant with the subscriber's information retrieved from NIDA to verify identity;
 - (d) The Licensee shall take a live facial image of the applicant;
 - (e) The SIM card registration shall have the same KYC as NIDA database;
 - (f) The SIM card applicant should be identified by a unique identifier and all activities carried out in the registration system should be logged. In any case, a unique identifier shall never be used by a different person.
 - (g) In case the applicant is living with a disability making fingerprint verification not possible, the staff shall indicate this in the system and the back-end office shall verify the application and approve it.
- (3) Upon receipt of the Natural Identification Credentials, the following information must, as a minimum, be recorded in the Subscriber Database:
 - a. Full names;
 - b. Date of birth;
 - c. Identity Card number;
 - d. a Clear Scanned Copy of the passport or national identity card;
 - e. Nationality;
 - f. Registered telephone number;
 - g. Sex;
 - h. Live Facial image;
- (4) In the event NIDA deploys other verification mechanisms, the Regulatory Authority shall provide procedures for such verification accordingly.
- (5) The Natural Person Identification Credentials required for the purposes of registration are presented and verified each time a Subscriber applies for a new or additional SIM-Card Enabled Telecommunications Service.
- (6) The licensee shall inform the applicant of the terms and conditions for using SIM cards.

Article 8: Registration of foreign residents

- (1) The licensee is required to register foreign residents holding work permits, refugees or asylum seekers, immigrants or any other non-citizen registered with NIDA in the Population registry under their single digital identity number.
- (2) The licensee must register the foreigner's SIM card using their valid identification documents, following the procedures specified under Article 7 of this Regulation.

Article 9: Registration of foreigners without resident permit

- (1) The registration process for foreigners without a resident permit (or visitors) shall be conducted as follows:
 - (a) Foreign applicants must present the travel document used for entry into the country (Passport or ID).
 - (b) The Licensee must conduct fingerprint verification with DGIE for confirmation;
 - (c) The Licensee must take a live facial image and biometric data of the applicant and match it with travel document information;
 - (d) The SIM Card will be activated only after the completion of KYC verification and confirmation of the passport details' authenticity.
- (2) In case the applicant with a defaced fingerprint or disabled, the staff/Agent shall indicate this in the system. The Licensee must take a live facial image of the applicant and match it with the travel document information. The SIM card shall be activated after verification with KYC confirmation of the travel document details authenticity.

Article 10: Registration of a corporate person

- (1) For a corporate person (a company, Faith-based Organization, NGO, or any other organization or corporate body) SIM card registration is conducted as follows:
 - (a) The applicant's representative must present a legal document proving the establishment of the public or corporate body and a letter from the legal representative of the corporate entity authorizing the representative to register SIM cards on its behalf;
 - (b) The Licensee must authenticate the TIN number through the Rwanda Revenue Authority (RRA);
 - (c) The Licensee conducts biometric verification of the corporate representative and registers their ID or passport;
 - (d) The SIM card is activated upon biometric data verification and validation;
 - (e) If the applicant's representative has a disability or a defaced fingerprint, the registering staff/agent must indicate this in the system, and the SIM card will be activated upon verification by the back-end office staff;
 - (f) If fingerprint verification fails, the SIM card is activated upon clearance from the back-end office staff within forty-eight (48) hours.

- (2) Corporate bodies are accountable for the accuracy of the data submitted to the licensee during the SIM registration process. They are also required to deregister inactive registered SIM Cards or all its SIM Cards upon dissolution.

Article 11: Registration of Diplomatic Missions and International Organizations

For Registration of Diplomatic Missions and International Organizations, SIM card registration is conducted as follows:

- (a) Diplomatic Missions and International Organizations submit official letters requesting SIM card registration through the Ministry of Foreign Affairs and International Cooperation;
- (b) The licensee must verify and confirm the authenticity of the applicant's documents and file the application documents with the ID/ Passport of the delegated personnel;
- (c) The applicant will be issued with the requested SIM card registered under its TIN Number, which will be activated upon verification by the back-end office.

Article 12: Registration for Statutory Bodies

For public organs or institutions, SIM card registration is conducted as follows:

- (a) The representative of the government organ or public institution must present an official letter authorizing them to register SIM cards on behalf of the applicant organ or institution;
- (b) The Licensee must authenticate the TIN number through the Rwanda Revenue Authority (RRA);
- (c) The Licensees must verify and confirm the authenticity of the applicant's documents and file the application documents with the ID of the delegated personnel.
- (d) The applicant will be issued with the requested SIM card, which will be activated upon verification by the back-end office.

Article 13: Registration of minor

Where a customer is a minor, a SIM Card shall be registered in the following manner:

- (a) The minor must be accompanied by a parent or guardian. The accompanying adult should provide valid identification (ID or passport) and the minor's birth certificate. In the event of guardianship or adoption, the guardian or parent must also present a guardianship certificate or adoption certificate;
- (b) The Licensee is required to verify and record the minor's date of birth as well as the identification details of the parent or guardian;
- (c) The Licensee shall conduct fingerprint verification of the parent or guardian with NIDA or DGIE for biometric SIM Card registration;

- (d) The parent or guardian accompanying the minor for the purpose of registering the minor's SIM card shall be registered as the SIM Card owner (subscriber) until the minor (SIM Card holder) reaches the age of majority;
- (e) The licensee must ensure that a commitment is signed by Parents or Guardians for the proper usage of the SIM card. During the registration process, records of both the guardians and the dependents must be captured;
- (f) Upon reaching the age of majority, the minor must register their personal identification details in accordance registration process for adult citizens. The licensee shall notify the SIM card holder of this requirement and inform them that failure to comply within the specified period will result in the suspension of their telecommunications services.

Article 14: Prohibition of proxy registration

The proxy SIM Card registration is not allowed, unless supported by the following documents:

- (a) Application letter notarized by the Rwandan Embassy in the applicant's country of residence;
- (b) Power of Attorney notarized by the Rwandan Embassy in the applicant's country of residence;
- (c) Notarized copy of the applicant's ID or Passport; and
- (d) ID or passport of the individual authorized by the power of attorney.

Article 15: Record keeping

- (1) All licensees are required to keep the following records for a period of not less than ten (10) years:
 - (a) Electronic record of the documents used in SIM Registration as proof of verification;
 - (b) Details of all SIM cards sold;
 - (c) Identification of all registered subscribers and any change made thereto;
 - (d) Applicants' details in the database as retrieved electronically from Verification service entities;
 - (e) Staff or agents' details involved in SIM Cards registration process;
 - (f) SIM card transfer consent form and any other supporting document.
- (2) Data stored for up to one (1) year must be retrievable within one (1) hour; while data archived for more than one (1) year must be retrievable within forty-eight (48) hours upon request.

CHAPTER III: DEACTIVATION, TRANSFER, REACTIVATION AND OTHER SAFETY MEASURES OF SIM CARDS

Article 16: SIM Card Deactivation

The Licensee deactivates a registered SIM Cards from the licensee's network under the following circumstances:

- (a) **Voluntary Deactivation:** Subscribers may request to deactivate their SIM cards if they no longer need the service or if the SIM Card is damaged or malfunctioning;
- (b) **Self SIM Deactivation:** A subscriber may de-register the number through the USSD code *125#;
- (c) **Lost or Stolen SIM Card:** The Licensee must immediately deactivate reported lost or stolen SIM cards to prevent unauthorized use;
- (d) **Unaired SIM Card:** The Licensee must deactivate SIM cards for individual persons that have been registered but not used in any device for over seven (7) days;
- (e) **SIM Deactivation for deceased persons:** SIM Card registered under a deceased must be deactivated upon receiving a notification from NIDA. The National Identification Agency (NIDA) shall promptly inform telecom operators once the death is officially recorded;
- (f) **SIM Deactivation due to fraudulent activities:** A SIM Card number suspected of involvement in fraudulent activities must be immediately deactivated or blocked from the network and the subscriber will be barred from all networks, pending further investigations. Furthermore, all numbers associated with the same ID, passport, or TIN must be temporarily deactivated and the ID blacklisted while an investigation is ongoing. If the investigation finds the suspicions to be unfounded, the Licensee shall promptly restore the suspended services.
- (g) **SIM Deactivation due to extended inactivity:** SIM cards that are inactive for an extended period of ninety days (90) may be deactivated and placed in dormancy status for a minimum period of three (3) years;
- (h) **SIM Deactivation for non-citizen residents:** If a subscriber is a non-citizen but residing in Rwanda, their SIM card will be deactivated by the licensee five (5) days following the expiry or cancellation of their residence permit;
- (i) **SIM Deactivation for tourist visa holders:** If a subscriber is a tourist, their SIM card will be deactivated by the licensee five (5) days after their visa expires or is canceled.

Article 17: Transfer of a SIM Card

- (1) A licensee may permit a subscriber ("transferor") to transfer a registered SIM card to another subscriber ("transferee").
- (2) The transfer of telephone number to the new user shall be done by following normal registration procedures. Both applicants must be physically present for the signing of the Transfer Request Form.
- (3) To facilitate the transfer, the licensee must first deregister the SIM card for the transferor and subsequently register the same SIM card for the transferee. The licensee is responsible for ensuring that the new subscriber completes the registration, verification, and activation processes.

Article 18: SIM Card number retention and reassignment

- (1) **Reassignment:** a de-activated SIM card shall be re-assigned to a new subscriber after three (3) years of being inactive.
- (2) **Retention:** For subscribers traveling abroad, temporarily suspending their mobile services, or not using their number for an extended period but wishing to retain it, the licensee shall offer a number retention service for dormancy periods not exceeding three (3) years, subject to specific terms and conditions.

This option should also be extended to subscribers whose visas have expired but who intend to use the same number in the future.

- (3) **Reactivation Process:** Customers can reactivate their service either at the end of the retention period or before it expires, by contacting the licensee or following the specified reactivation procedures.

Article 19: PIN set up requirements

Any PIN set up must follow these requirements:

- (a) Setting of a PIN must be conducted on an individual basis through Self-PIN setting;
- (b) If the user requires support, it will be provided at authorized registration premises. The PIN setting must always be composed out of sight of any individual and must be approved by the service center manager;
- (c) Setting of auto-generated PINs is not allowed;
- (d) The selected PIN must be kept confidential at all times.

Article 20: SIM Swap

Any SIM Swap is subject to the following conditions:

- (a) **Authorized Premises and Identification:** The SIM swap must be conducted at authorized registration premises. The SIM card owner must present valid proof of identification and be physically present.
- (b) **Verification and validation process:** The Licensee must retrieve the SIM card information, verify the biometric data and authorize the SIM swap. The PIN reset must be conducted on an individual basis through Self-PIN Reset. If the user requires support, it will be provided at authorized registration premises and approved by the service center manager.
- (c) **Record Keeping:** The credentials and logs of the staff involved in the SIM swap process, as well as any individual accessing the SIM swap database, must be recorded and retained.

Article 21: Authorized KYC Agents

- (1) Each Licensee must establish clear internal procedures for recruiting and accreditation of agents.
The Licensee is also required to maintain an updated database of their authorized KYC Staff and agents.
- (2) The Licensee shall avail online mechanism for the Regulatory Authority to verify the authenticity of KYC staff or agent.
- (3) SIM cards of agents involved in fraudulent SIM Card registration or fraudulent SIM Swap activities should be deactivated or blocked from the network.
- (4) Agents blacklisted by a network for fraudulent SIM registration or SIM swap transactions will be barred from all networks.

Article 22: Verification of SIM card registered under the ID

- (1) The Licensee must activate the USSD code *125# to allow their subscribers to identify the number of registered SIM cards allocated under their identification per Licensee Network.
- (2) That system must also allow subscribers to deregister unrecognized or undesired numbers from any Network.

Article 23: Registering a new number to an existing subscriber

The registration of a new number to an existing subscriber is subject to the following conditions:

- (a) **Biometric Verification:** The new SIM Card will be added to the existing account, upon validation of the applicant's fundamental Sim registration records through biometric authentication;
- (b) **Consent via SMS:** Obtain consent from applicant via SMS requesting the applicant for approval to register the new SIM card number;
- (c) **OTP Verification:** Trigger a One-Time Password (OTP) to applicant for verification;
- (d) **Notification of Registered Numbers:** send an SMS notification to the primary number indicating all numbers registered under that ID in the new database;
- (e) **Record Update:** Update applicant's SIM registration records accordingly.

Article 24: Limitation of number of SIM cards

(1) The limit of SIM Card ownership per each Network Operator is as follows:

- (a) **Rwandan Citizens:** Rwandans registering with an ID are allowed to have three (3) SIM cards per Network Operator;
- (b) **Foreign Nationals:** Foreigners registering under their passport are allowed to have one (1) SIM card per Network. However, upon acquiring a work permit and a foreigner ID, they can register up to three (3) SIM cards per Network.

(2) If a subscriber has a justified need for additional SIM cards, they must seek approval from the Regulatory Authority.

Article 25: SIM Card Mapping

The Licensee must limit SIM registration to one (1) SIM card per ID within twenty-four (24) hours.

Article 26: Synchronization between mobile telecom operator database and identity validation entities

- (1) The Licensee must ensure seamless integration with Functional Data Entities.
- (2) The Licensee must synchronize their databases with the National Identification Centre for the automatic verification of the applicants.

CHAPTER IV: THE OPERATOR'S DATABASE USE

Article 27: Establishment and maintenance of Operator's Database

Under this Regulation, the Licensee has the following responsibilities:

- (a) Establish and maintain a database of all registered subscribers' information, referred to as "the Operator's Database";
- (b) Ensure that the database is organized in a manner that allows easy access to data, exclusively by authorized personnel, in accordance with applicable laws and regulations. The licensee must also provide control of the SIM Card registration database with necessary security measures in place.

Article 28: Control and Security of SIM Card Registration Database

Under this Regulation, the Licensee has the following responsibilities:

- (a) Implement and maintain control mechanisms for the SIM Card registration database;
- (b) Apply necessary security measures to protect the database from unauthorized access, data breaches, and other security threats.

Article 29: Use of Personal Information

- (1) For effective verification of the applicant's biometrics data, including but not limited to facial images and fingerprint or any other biometrics approved by the Regulatory Authority, the use of such data must comply with the protection of Personal data and privacy Law, and the supporting infrastructure requirements.
- (2) The licensees are prohibited from using any personal information of their subscribers without prior consent of the concerned subscriber, for any reason outside the scope of the license and relevant laws and regulations.

Article 30: Access to Operator's Database by the Regulatory Authority

- (1) The Regulatory Authority shall have access to the SIM Card registration database.
- (2) The licensee must grant the Regulatory Authority's officers' access to its systems, premises, facilities, files, records and other data to enable the Regulatory Authority to inspect the effective compliance of this Regulation.

Article 31: Access to subscriber's information by third parties

Third parties are not allowed to access subscribers' information unless required by the law or a court order.

Article 32: Data protection and confidentiality

For the purpose of data protection and confidentiality, the following measures shall be taken into consideration:

- (a) Any subscriber whose personal information is stored in the Operator's database shall be entitled to view the Licensee KYC records and to request updates and amendments thereto;
- (b) Subscribers' information stored in the operator's database must be held strictly confidential. Access to any subscriber's information by a third party is prohibited, except as allowed by this Regulation, other relevant laws, or by order of a competent court;
- (c) Licensees must take all necessary measures to preserve the integrity and prevent any corruption, loss, unauthorized access or disclosure of subscribers' information;
- (d) Licensees must keep all personal information retained in accordance with this Regulation;
- (e) Licensees providing registration services shall not retain the personal data of any subscriber after transmission thereof to the operator's database.

CHAPTER V: INSPECTION, AND REPORTING

Article 33: Inspection and Monitoring

- (1) The Regulatory Authority reserves the right to monitor and inspect the licensee's compliance with SIM card registration requirements.
- (2) Inspections may cover the licensee's systems, facilities, records, and procedures related to SIM card registration.
- (3) Inspection methods include, but are not limited to, on-site visits, data sampling, and review of records to ensure adherence to regulatory standards.
- (4) The Regulatory Authority may conduct audits to assess the accuracy and integrity of the licensee's compliance reports and records.

Article 34: Reporting

- (1) Licensees must submit reports to the Regulatory Authority detailing the number of registered SIM cards on a quarterly basis or upon request by the Authority.
- (2) Licensees must immediately notify the regulatory authority of any security breaches, unauthorized access to subscribers' information, illegal SIM registration and illegal SIM swaps, and submit an incident report within forty-eight (48) hours of their occurrence.

CHAPTER VI: FAULTS AND ADMINISTRATIVE FINES

Article 35: Failure to report illegal SIM Registration and SIM Swap

Failure to report any incident of illegal SIM registration or SIM Swap within the specified reporting time frame will result in an administrative fine of two Million Rwandan Francs (FRW 2,000,000) per incident.

Article 36: Non-compliance with activation and deactivation Requirements

Any licensee who activates or fails to deactivate a SIM Card as provided for in this Regulation is liable to an administrative fine of one million five hundred thousand Rwandan francs (FRW1,500,000) for each SIM Card.

Article 37: Non-compliance with SIM Card registration and SIM Swap procedures

Any licensee who fails to comply with the procedures or controls in place for SIM card registration or SIM Swap is liable to an administrative fine of two million Rwandan francs (FRW 2,000,000) per fault.

Article 38: Compensation for non-compliance

The licensee must compensate a victim of any material loss suffered from fraudulent activities resulting from non-compliance with this regulation by the Licensee, where liability has been established.

Article 39: Unauthorized use of subscriber's information

Without prejudice to other relevant laws, a licensee who uses the subscriber's information in any business, commercial, or other transactions, without the subscriber's consent, is liable to an administrative fine of two million five hundred thousand Rwandan francs (FRW 2,500,000) per affected subscriber.

Article 40: Failure to provide required stored data

A Licensee who fails to provide the required stored data for cases under investigation within the prescribed timeframe is liable to a fine of one million Rwandan Francs (FRW 1,000,000) per case.

Article 41: Unauthorized SIM Card Registration Awareness

A licensee who conducts SIM card registration awareness in unauthorized areas, especially on roads, streets, and in households, is liable to a fine of one million Rwandan Francs (FRW 1,000,000) per reported case.

Article 42: Activation of SIM Cards without OTP Validation

A licensee who activates a second SIM Card without an OTP validation is liable to a fine of two million Rwanda francs (FRW 2,000,000) per SIM Card.

Article 43: General Breach of Regulation

Notwithstanding the provisions of this Regulation, any violation of any other provision of this Regulation will result in an administrative fine of two million Rwandan francs (FRW 2,000,000).

Article 44: Repeated breaches

In the event of repeated breaches, additional sanctions will be imposed in accordance with article 269 of Law N°24/2016 of 18/06/2016 governing information and communication technologies.

CHAPTER VII: FINAL PROVISIONS

Article 45: Repealing Provision

Regulation N°004/ICT/RURA/2018 on SIM card Registration is repealed.

Article 46: Entry into force

This regulation comes into force on the date of its signature by the Chairperson of the Regulatory Board.

Kigali, on 22 /08 / 2024

(Sé)

Dr Carpophore NTAGUNGIRA

Chairperson of the Regulatory Board